

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JULY 23, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON VAUGHT

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1A. **C24-01928** **KENTON KEADING VS. HILJA KEADING**
9:00 AM HEARING IN RE: VERIFIED COMPLAINT FOR DAMAGES FILED ON 7/26/24 BY KENTON KEADING

On the court's own motion, and due to Judge Hinton's absence, this matter is continued to August 13, 2026, at 9:00 a.m.

When to proceed, will need appearances.

Notes:

1. Motion to Disqualify Attorneys filed by Kenton Keading is set for hearing 9-24-2026.
2. Motion to Bifurcate Trial filed by Kenton Keading is set for hearing 10-22-2026.

1B. **C24-01928** **KENTON KEADING VS. HILJA KEADING**
9:00 AM HEARING IN RE: PETITION TO CONFIRM THE BENEFICIAL INTEREST OF KENTON KEADING IN KEADING FAMILY TRUST FILED ON 01/27/26 BY KENTON KEADING

On the court's own motion, and due to Judge Hinton's absence, this matter is continued to August 13, 2026, at 9:00 a.m.

When to proceed, will Need:

1. Appearances
2. Proposed Order

Note: "Trustee Hilja Keading's Brief Explaining Why Department 30 Must Hear The Verified Petition..." filed 6-2-2026.

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1C.

9:00 AM

C24-01928

KENTON KEADING VS. HILJA KEADING

HEARING IN RE: MOTION FOR ORDER RELATING CASES AND ASSIGNMENT FILED ON 3/25/26 BY
KENTON KEADING

On the court's own motion, and due to Judge Hinton's absence, this matter is continued to August 13, 2026, at 9:00 a.m. Briefing deadlines shall be based on the originally calendared hearing date.

When to proceed, will Need:

1. Appearances
2. Proof of Service on all persons entitled to receive notice
3. Proposed Order

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4A. **MSP18-00659 MATTER OF: THE WALLACE FAMILY LIVING TRUST**
9:00 AM HEARING IN RE: PETITION TO APPROVE SETTLEMENT FILED BY D'ET WALLACE KING ON 3-26-26

Need:

1. Appearances
2. Verified declaration by petitioner to include page 9 of settlement agreement
3. Proposed Order

4B. **MSP18-00659 MATTER OF: THE WALLACE FAMILY LIVING TRUST**
9:00 AM HEARING IN RE: TRUSTEE'S FIRST ACCOUNTING DUE FILED ON 07/30/2018 BY D'ET DARLENE
WALLACE KING

Need appearances

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6. **MSP21-01278** **ESTATE OF: DEBBIE TAKAMOTO**
9:00 AM HEARING IN RE: PETITION FOR FINAL DISTRIBUTION WITH FINAL ACCOUNTING FILED ON 4-22-25 BY
RYUKO TAKAMOTO

Need:

1. Spouse did not file an election to subject any inheritance to formal administration so therefore court lacks jurisdiction to order distribution to spouse or fees thereon. Need petition (may be *ex parte*) showing good cause for allowing late election, and order. Otherwise you will need amended petition eliminating spouse's portion and a recalculation of statutory fees. Proposed election must comply with LR 7.305. See PrC §§ 13500, 13501, 13502. Regrettably, this was not included in prior tentative ruling.
2. Revised, proposed Order as needed in resolution of above

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7. **P22-02004** **ESTATE OF: SHIRLEY WATSON**
9:00 AM HEARING IN RE: FIRST & FINAL ACCOUNT & REPORT OF ADMINISTRATION & PETITION FOR ORDER:
SETTLING ACCOUNT & APPROVING REPORT OF ADMINISTRATRIX; ALLOWING STATUTORY
COMPENSATION OF ATTY & ADMINISTRATRIX & FINAL DISTRIBUTION FILED BY MELODIE WATSON ON
3-27-26

TR continued at next page

Need:

1. Proof of mailing to Maisha Nieto at address in petition or waiver of notice. Proof of Service attached to Notice filed 3-27-2026 reflects mailing to an address other than that listed in petition.
2. Proof of mailing to Franchise Tax Board who requested special notice, including mailing Inventory and Appraisal. PrC § 1202; 8803
3. Verified declaration by petitioner to clarify statement at ¶ 1 that decedent was a resident of Placer County
4. Satisfaction of Capital One claim; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 9353
5. Verified declaration by petitioner to clarify dates Creditor's Claim were filed by American Express and Capital One; claims were filed 1-12-23 and 1-18-23, respectively.
6. Declaration addressing creditor claim filed by Franchise Tax Board on 1-13-2025 for \$3,485.25. PrC § 10900; CRC § 7.403.
7. Verified declaration by petitioner to state whether notice was given, or needed, to Dept. of Health Care Services as to decedent and predeceased spouse. PrC § 215, 9202(a); i.e., did decedent or predeceased spouse receive Medi-Cal benefits?
8. Verified declaration by petitioner to show that notice of administration was given to the Franchise Tax Board. PrC § 9202(c)(1)
9. Declaration to state when action under IAEA (with Notice of Proposed Action) was taken, when and to whom notice was given, whether notice was waived by anyone and whether any objections were received. CRC § 7.250
10. Inventory and Appraisal filed
11. Evidence of compliance with Probate Code § 11005.
12. Verified declaration by petitioner to specify plan of distribution, including approximate amount of cash to be distributed to each heir. LR 7.301
13. Verified declaration by petitioner to clarify whether a Federal estate tax return Form 706 was filed as indicated at ¶ 8.

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14. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
15. Proposed Order

Note: Court will re-review petition, accounting and statutory fee calculation upon filing of Inventory and Appraisal.

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8A. **P23-01897** **ESTATE OF: LEONARD SMITH**
9:00 AM HEARING IN RE: FIRST AND FINAL ACCOUNT & REPORT OF PERSONAL REPRESENTATIVE & PETITION FOR ITS APPROVAL, FOR FINAL DISTRIBUTION, & FOR STATUTORY ATTORNEY & ADMINISTRATOR COMPENSATION FILED ON 6-16-25 BY SHUNDOLYN D. SMITH-MASON

Need:

1. Proof of mailing Notice of Hearing re: Amendments to Delores Smith at address listed in Amendment or waiver of notice. Proof of Service attached to Notice filed 6-30-2026 reflects mailing to an address other than that listed in petition.

8B. **P23-01897** **ESTATE OF: LEONARD SMITH**
9:00 AM HEARING IN RE: AMENDMENTS TO FIRST AND FINAL ACCOUNT & REPORT OF PERSONAL REPRESENTATIVE & PETITION FOR ITS APPROVAL, FOR FINAL DISTRIBUTION, & FOR STATUTORY ATTORNEY & ADMINISTRATOR COMPENSATION FILED ON 6-30-26 BY SHUNDOLYN D. SMITH-MASON

See Line 8A

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9A.

9:00 AM

P25-01683

ESTATE OF: ASSAD QASSEM

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 03/25/26 BY
SAHAR KANAAN

Need:

1. Appearances
2. Verified declaration by petitioner to include John Balquist in Item # 8. PrC § 8002

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9B. P25-01683 ESTATE OF: ASSAD QASSEM

9:00 AM HEARING IN RE: AMENDED PETITION FOR LETTERS OF ADMINISTRATION FILED ON 1-14-26 BY
BRANDON ASAAS JAMAL QASSEM

Drop.

Note: It appears this petition is a duplicate of petition filed 1-8-2026.

9C. P25-01683 ESTATE OF: ASSAD QASSEM

9:00 AM HEARING IN RE: AMENDED PETITION FOR LETTERS OF ADMINISTRATION W/ IAEA FILED BY BRANDON
ASAAD JAMAL QASSEM ON 01/08/2026

Need appearances

Notes:

1. Objection filed by Sahar Kanaan 03/25/26.
2. Reply filed 4-3-2026.

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9D.

9:00 AM

P25-01683

ESTATE OF: ASSAD QASSEM

HEARING IN RE: PETITION FOR LETTERS OF SPECIAL ADMINISTRATION FILED BY SAHAR KANAAN ON
4-3-26

Drop.

Need appearances

Note: Per 4-9-2026 minute order, court appointed John Balquist as Special
Administrator and fixed bond at \$540,000.00. Letters issued 4-10-2026.

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13.

9:00 AM

P25-01938

MATTER OF: THE MODISTE L. ROLLINS 2016 LIVING TRUST

HEARING IN RE: PETITION TO DETERMINE INVALIDITY OF TRUST INSTRUMENT; FOR DECLARATORY RELIEF; AND FOR REMOVAL OF TRUSTEE FILED ON 10/29/25 BY LAMONT BOYSAW AND CURTIS ROLLINS, JR

-- See also Line # 14 --

Need:

1. Appearances
2. Proof of mailing Judicial Council Form Notice of Hearing to Stephen Smith at address in petition. Proof of Service attached to Notice filed 10-30-2025 reflects mailing to him at an address other than that listed in petition. PrC § 17203
3. Proposed Order

Notes:

1. Objection filed by Kaliaha Kelly 3-9-2026.
2. This case will be consolidated with Case # P25-02006, with Case # P25-01938 as the master case number. All future documents should be filed with that case number.

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14.	P25-02006	MATTER OF: THE MODISTE L. ROLLINS 2016 LIVING TRUST, DATED JANUARY 6, 2016
9:00 AM	HEARING IN RE: PETITION FOR ORDER CONFIRMING ASSET IN TRUST FILED ON 11/07/25 BY KALIAHA M. KELLY	
		-- See also Line # 13 --
	Need appearances	
	Notes:	
	1. Per 4-2-2026 minute order, atty. Simran Sekhan appeared in objection and court ordered written objections to be filed by 5-2-2026. 2. Objector Lamonte BOysaw's Objection filed 5-4-2026. 3. This case will be consolidated with Case # P25-01938, with Case # P25-01938 as the master case number. All future documents should be filed with that case number.	

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15A.	P26-00362	MATTER OF: FIRST MODIFICATION AND RESTATEMENT OF JAMES W. FORTINO 2016 SEPARATE PROPERTY TRUST ESTABLISHED FEBRUARY 19, 2016, AS RESTATED FEBRUARY 7, 2025
9:00 AM	HEARING IN RE: AMENDED PETITION TO CONFIRM 1 ST MODIFICATION & RESTATEMENT OF JAMES W FORTINO 2016 SEPARATE PROPERTY TRUST, TO INVALIDATE THE "THIRD AMENDMENT" ON THE GROUNDS OF UNDUE INFLUENCE, LACK OF CAPACITY, FRAUD & MISTAKE; FOR DISINHERITANCE; DOUBLE DAMAGES FILED ON 3-25-26 BY KATHRYN FORTINO	
	Need: 1. Appearances 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice, except Susan Fortino who has filed a Notice and Acknowledgement of Receipt. PrC § 17203 3. Proposed Order	
	Note: Notice of Related Case filed 4-7-2026; Placer County Case # S-PR-0014076.	

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**15B. P26-00362 MATTER OF: FIRST MODIFICATION AND RESTATEMENT OF JAMES W. FORTINO
2016 SEPARATE PROPERTY TRUST ESTABLISHED FEBRUARY 19, 2016, AS
RESTATED FEBRUARY 7, 2025**

9:00 AM HEARING IN RE: PETITION TO CONFIRM FIRST MODIFICATION AND RESTATEMENT OF JAMES W.
FORTINO 2016 SEPARATE PROPERTY TRUST, TO INVALIDATE "THIRD AMENDMENT" ON GROUNDS OF
UNDUE INFLUENCE, LACK OF CAPACITY, FRAUD AND MISTAKE, FINANCIAL ELDER ABUSE,
DISINHERITANCE, RETURN OF TRUST PROPERTY WRONGFULLY TAKEN FILED ON 02/26/26 BY
KATHRYN FORTINO

Superseded by Line 15A

If to proceed, would Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

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16. 9:00 AM	P26-00571 HEARING IN RE: PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PERSONAL PROPERTY (HEGGSTAD PETITION) FILED ON 03/24/26 BY ALAN FISHMAN	MATTER OF: STANLEY FISHMAN FAMILY TRUST DATED SEPTEMBER 18, 2025
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Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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17.

9:00 AM

P26-00583

MATTER OF: THE STANLEY RAY JACKSON REVOCABLE LIVING TRUST

HEARING IN RE: PETITION UNDER PROBATE CODE SECTIONS 850 AND 17200 FOR DETERMINATION THAT VEHICLE IS TRUST PROPERTY; COMPELLING TRANSFER OR PAYMENT; ORDER COMPELLING ACCOUNTING; ORDER COMPELLING DISTRIBUTION OF REAL PROPERTY SALE PROCEEDS; COMPELLING REDRESS OF BREACHES; REMOVAL OF TRUSTEE; APPT OF SUCCESSOR TRUSTEE; ORDER DIRECTING DISTRIBUTION; FEES AND COSTS FILED ON 03/25/26 BY MICHE' SHARPE

Need:

1. Appearances
2. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
3. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property, except Rayvon Jackson who has responded. PrC § 851(a)(2)
4. Proposed Order

Note: Respondent Rayvon Jackson's Response and Objection filed 5-11-2026. Need evidence of payment of filing fees or response will be deemed void.

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18.	P26-00599	MATTER OF: HARRY A. TAJIMA AND JEAN O. TAJIMA LIVING TRUST DATED MAY 6, 1995
9:00 AM	HEARING IN RE: PETITION FOR ORDER TERMINATING IRREVOCABLE TRUST FILED BY JEAN O TAJIMA ON 3-27-26	
	Need: Proposed Order	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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19.	P26-00617	MATTER OF: THE IVO AND KATHRYN GARDELLA REVOCABLE TRUST DATED JULY 28, 2022
9:00 AM	HEARING IN RE: PETITION TO CONFIRM ASSETS OF TRUST FILED ON 04/01/2026 BY MARISA HILL AND ELENA GARDELLA	

Petition Approved
Proposed Order Submitted
No Appearance Required